No. 2025 - 2026

IN THE

SUPREME COURT OF THE UNITED STATES

WILLIAM DENOLF,
PETITIONER,

V.

OLYMPUS STATE UNIVERSITY,
RESPONDENT.

ON WRIT OF CERTIORARI TO THE SUPREME COURT OF THE STATE OF OLYMPUS

BRIEF FOR RESPONDENT

QUESTIONS PRESENTED FOR REVIEW

1. Whether Olympus State University violated Petitioner William DeNolf's First Amendment rights when it terminated his employment after he criticized the University's admissions policy in classrooms, conferences, media appearances, and at the student-sponsored Unity Fest.

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CONSTITUTIONAL PROVISIONS

The First Amendment's Free Speech Clause provides: "Congress shall make no law … abridging the freedom of speech." U.S. Const. amend. I, as applied to the States through the Due Process Clause of the Fourteenth Amendment.

STATEMENT OF THE CASE

Petitioner served as a lecturer in OSU's Department of Government and Politics during the Spring 2023 term, where he taught two classes and advised student groups. R. 7–8. Although OSU faced budgetary cuts that endangered renewal of part-time faculty, Professor Bronner indicated support for retaining Petitioner, particularly if he continued teaching Constitutional Law. R. 8. During the 2022–2023 academic year, OSU confronted multiple campus incidents, including assaults on female students wearing headscarves, misogynistic and anti-Semitic graffiti, a noose hung in a University facility, and distribution of offensive materials. R. 9–10. The student government responded by organizing "Unity Fest" to promote unity across religious, racial, and gender lines, an event approved by OSU President Jackie Zambrano, who

recommended inviting Petitioner due to his popularity and reputation for speaking on social issues. *Id.*

At Unity Fest, held on campus and open to OSU employees, students, and members of the community, Petitioner performed "Imagine a Level Playing Field," a poem critical of OSU's admissions policy granting preferential weight to female applicants to its graduate criminal-justice program. R. 10. He identified himself as a lecturer and "recent victim" of that policy, denounced affirmative action as inconsistent with equality, and urged attendees to challenge institutional inequality. *Id*. A livestream of the performance reached more than 1.5 million viewers, and Petitioner later appeared on radio and national television interviews, where he was introduced as an OSU lecturer while discussing his criticisms. R. 10–11.

Following the performance, OSU received widespread backlash from parents, alumni, donors, elected officials, and members of the public, many of whom believed Petitioner's remarks reflected OSU's official position. R. 10–11. Prominent alumni withdrew previously committed donations and successfully pressured others to follow. Id. OSU administrators further reported declines in undergraduate applications by approximately twenty percent overall, and by thirty-three percent among women. R. 11. On May 4, 8, 27, and 29, OSU officials met to address community concerns, donor withdrawals, and institutional confusion. Id. On May 29, Dean Ignatuk informed Petitioner that OSU would not renew his contract at the end of its term, and the decision was later announced on OSU's website. R. 11–12. Petitioner then filed suit alleging, among other claims, that OSU's non-renewal of his contract violated the First Amendment. R. 12.

SUMMARY OF ARGUMENT

Olympus State University did not violate Petitioner's First Amendment rights when it declined to renew his lecturer contract after his Unity Fest remarks. Even assuming he spoke as a citizen on a matter of public concern, the claim fails under the *Pickering–Connick* balancing test because OSU proved substantial institutional harms that outweigh any speech interest he asserts.

The record establishes that OSU's action was justified by three constitutionally recognized employer interests: (1) Reputational: Petitioner publicly criticized OSU's admissions policy while identifying himself as an OSU lecturer, causing widespread confusion among students, applicants, parents, alumni, donors, and community members about whether his remarks reflected OSU's own views. (2) Financial: Long-standing donors withdrew support and pressured others to follow, and undergraduate applications dropped, both overall and sharply among women, directly impairing OSU's funding base and student programs. (3) Operational: OSU diverted administrative time and resources to address backlash, issue clarifications, and reorganize internal structures, confirming concrete disruption to institutional functioning.

Pickering and *Connick* make clear that when employee speech undermines operational efficiency, institutional integrity, or public trust, the government employer may lawfully act, even if the speech touches public concern. Those precedents fully support OSU's position here.

Two independent considerations further diminish Petitioner's First Amendment interest.

First, the university setting strengthens OSU's side of the scale. Universities serve a unique public mission and are constitutionally entrusted with safeguarding academic standards, institutional identity, and public confidence. Academic-freedom protections flow to the university as an institution, not to individual faculty. Petitioner's speech—delivered under OSU's platform, title, and sponsorship—directly implicated those core institutional interests.

Second, Petitioner's speech interest is further reduced because it stemmed from personal grievance. *Connick* instructs that employee speech rooted in internal dissatisfaction receives diminished constitutional weight. Petitioner's critique followed his own unsuccessful admission attempt and was framed through that experience, placing it closer to workplace grievance than neutral civic commentary.

Under *Pickering*, the balance requires weighing the lecturer's speech interest against the employer's demonstrated harms. Here, OSU's reputational, financial, and operational injuries are concrete, immediate, and institution-wide, while Petitioner's speech interest is weakened by both institutional context and personal motive. The First Amendment does not require a public university to absorb destabilizing consequences to its mission, identity, and funding. Because OSU acted only after disruption occurred and limited its response to non-renewal at the end of a term appointment, the judgment below should be affirmed.

ARGUMENT

I. Olympus State University did not violate Petitioner's First Amendment rights when it declined to renew his contract after his criticisms of the University's admissions policy in Unity Fest.

A. Legal Standard: Under the *Pickering–Connick* Framework, Petitioner's Claim Fails at the Balancing Stage.

A public employee alleging retaliation for speech must establish three elements:

(1) that petitioner spoke "as a citizen" rather than pursuant to his official duties, *Garcetti v. Ceballos,* 547 U.S. 410, 421 (2006);

(2) that petitioner spoke "on a matter of public concern," *Connick v. Myers*, 461 U.S. 138, 146 (1983); and

(3) that, under the *Pickering–Connick* balancing test, petitioner's interest in speaking outweighs the employer's interest in efficient and trusted operation, *Pickering v. Bd. of Educ.*, 391 U.S. 563, 568 (1968); *Connick*, 461 U.S. at 150–51.

Pickering sets the core rule: "The problem… is to arrive at a balance between the interests of the teacher, as a citizen, in commenting upon matters of public concern and the interest of the State, as an employer, in promoting the efficiency of the public services it performs." 391 U.S. at 568.

Connick confirms that the *Pickering* balance governs all public-employee First Amendment claims and explains that when employee speech does not touch matters of public concern, government officials must be given "wide latitude in managing their offices, without intrusive oversight by the judiciary in the name of the First Amendment." 461 U.S. at 146. Even

when speech does address matters of public concern, courts still apply the Pickering balancing test to determine whether the employee's rights have been infringed. Id. at 150–51.

Rankin v. McPherson further instructs that the *Pickering* balance turns heavily on context: "In weighing the employee's First Amendment rights against the employer's need to maintain discipline and harmony and to promote the efficiency of its public services, we look to the context in which the dispute arose." 483 U.S. 378, 388 (1987).

Applying those standards here, OSU does not contest the first two elements. For purposes of argument, OSU accepts that at Unity Fest, Petitioner spoke: (1) as a citizen, and (2) on a matter of public concern (affirmative-action admissions policy). But under *Pickering*, clearing those thresholds only brings him to step three — the balancing stage — and it is at that stage that his claim fails.

OSU has demonstrated concrete reputational, financial, and operational harms flowing directly from Petitioner's speech. *Connick* expressly recognizes that when employee speech threatens "the efficiency of the employer's operations," the government employer may act. 461 U.S. at 150–52. And *Rankin* instructs courts to account for time, place, manner, and context in that evaluation, all of which here strongly weigh in OSU's favor. 483 U.S. at 388.

Most importantly, *Pickering* makes clear that even speech that touches public concern is not categorically protected if it disrupts the government's ability to function: "The State's interests as an employer in regulating the speech of its employees… differ significantly from those it possesses in connection with regulation of the speech of the citizenry in general." 391 U.S. at 568.

Thus, even assuming Petitioner

spoke as a citizen on a matter of public concern, he cannot satisfy the third and essential requirement of the *Pickering–Connick* framework. The record shows substantial institutional harm to OSU, and under controlling precedent, those interests decisively outweigh any First Amendment interest he asserts. Accordingly, no constitutional violation occurred.

B. OSU has several interests under the *Pickering-Connick* Balancing test that Justify Its Personnel Decision.

1. Under *Pickering*, OSU's compelling interest in preserving institutional reputation and credibility outweighs any First Amendment interest asserted by Petitioner.

Courts balance the employee's interest in speech against the public employer's interest in maintaining efficient and trusted operations. *Pickering*, 391 U.S. at 568. That balance gives substantial weight to institutional concerns where public-facing employee speech risks undermining discipline, coherence, or public confidence. *Rankin*, 483 U.S. at 388. And the Seventh Circuit recognizes that universities possess a particularly strong institutional interest in protecting the integrity and credibility of their academic programs when faculty speech publicly challenges them. *Renken*, 541 F.3d at 775–76.

That principle applies squarely here. Petitioner used his University title and platform at Unity Fest to criticize OSU's newly-adopted admissions initiative. R. 8–9. He expressly identified himself as an OSU professor while addressing attendees at this official event, held on OSU property and sponsored by OSU itself. R. 5, 7. He made these remarks in April, during the academic year, when admissions activities, donor relations, and University messaging are active and publicly visible. R. 10.

The surrounding context magnified the reputational risks. As the record shows, the speech occurred when campus communities were still reacting to reported assaults on female students, offensive slogans spray-painted on buildings, and even the discovery of a noose in a University facility. R. 9. When a faculty member, speaking with institutional authority, referenced and criticized OSU's admissions measures during that sensitive moment, the potential for reputational harm was both foreseeable and significant.

And the record confirms that harm materialized. Undergraduate applications declined by approximately 20–33% in the weeks following his speech. R. 10. Members of the community reported that they believed his remarks represented OSU's own position. R. 10. Certain long-time donors withdrew their financial support and encouraged others to do the same. R. 10. The University was required to divert administrative time and resources to hold internal meetings, issue clarification, and address public confusion about whether OSU endorsed his statements. R. 11.

Under *Renken*, courts recognize that when faculty speech triggers real-world reputational consequences tied to a core institutional program, the university's side of the balance carries serious constitutional weight. And Rankin reiterates that employee speech threatening public trust, administrative discipline, or confidence in institutional mission may justify action under Pickering's balancing. That is precisely what the record shows here: Petitioner's remarks, delivered under OSU's banner, generated confusion, reputational damage, community backlash, and measurable decline in both applications and donor support. The First Amendment does not require a public university to absorb reputational instability where the speech at issue was tied to institutional authority and produced concrete harms. Accordingly, under *Pickering*, *Rankin*, and *Renken*, OSU's reputational interest weighs heavily on the employer's side of the balance.

2. OSU's financial stability and ability to fund student programs are substantial employer interests under *Pickering* and *Connick*.

In balancing employee speech against the government's interests as employer, the Court has emphasized the State's interest in the "effective and efficient fulfillment of its responsibilities to the public." *Connick*, 461 U.S. 138; *Pickering*, 391 U.S. 563. Efficiency is not limited to internal harmony; for a public university, it includes the ability to secure and maintain the financial resources necessary to operate its core academic and student programs.

The record shows that after Petitioner's Unity Fest remarks, a group of long-time donors referred to as "The Seven" withdrew their financial commitments for the following year and "successfully pressured" additional donors to follow suit. R. 10. OSU administrators testified that these withdrawals directly threatened funding for student scholarships and athletic programs. R. 10. This was not a speculative or minor loss: donors expressly tied their decisions to Professor Petitioner's speech, delivered under OSU's name at an OSU event. R. 10.

Under Connick, when employee speech is "potentially harmful or injurious to the efficiency of the employer's operations," the government is not required to wait until its programs are irreparably damaged before acting. 461 U.S. 138. Here, the financial harm was both concrete and immediate. By shrinking the pool of funds earmarked for scholarships and student services, the donor withdrawals impaired OSU's ability to "perform its mission" as a public university. R. 10.

Nor is this a case of wealthy critics silencing an unpopular viewpoint. OSU did not censor Petitioner, revoke his ability to speak, or prohibit him from criticizing University policy. He spoke; the University absorbed the fallout; and only then did OSU decide not to renew his contract at the end of its term. R. 8–10. *Pickering* permits a public employer to consider such

real-world financial consequences in the balance. 391 U.S. 563. The First Amendment does not compel OSU to treat its scholarships, athletics, and student-facing programs as collateral damage. When faculty speech, delivered under institutional auspices, triggers substantial financial disruption that undermines the University's ability to serve its students, *Pickering* and *Connick* recognize that those operational interests weigh heavily on the employer's side of the scale.

3. The administrative disruption triggered by Petitioner's speech exceeds the level of disruption the Court deemed sufficient in *Connick*.

This Court in *Connick* held that even the circulation of a single internal questionnaire—described there as a "mini-insurrection"—was sufficient disruption to justify the district attorney's employment decision. 461 U.S. 138. Notably, the office in *Connick* did not undergo formal restructuring or engage in extensive public remediation. Id. The Court nonetheless credited the employer's interest in maintaining discipline and efficient operation.

The disruption OSU faced here was substantially greater. Following Petitioner's Unity Fest remarks and the resulting backlash, OSU officials convened at least four separate meetings on May 4, 8, 27, and 29 to address the fallout and determine an institutional response. R. 11. The record further reflects that OSU "reorganized" portions of its administrative structure in response to the controversy and that the President issued a public apology to clarify that Petitioner's statements did not represent University policy. R. 11. Administrators devoted significant time and resources to addressing student concerns, donor reactions, and public confusion. R. 11.

This is not a case where the employer speculates about possible disruption. The record documents sustained administrative upheaval: repeated high-level meetings, structural changes in

departments, and formal presidential messaging to repair institutional trust. R. 11. Under *Connick*, disruption far less extensive than this was sufficient to justify the employer's interests.

If *Connick's* internal "mini-insurrection" supports the government's side of the Pickering balance, then the broader and deeper disruption here—affecting campus governance, leadership messaging, departmental structure, and student trust—necessarily weighs at least as heavily in OSU's favor. To hold otherwise would render the employer's interest in maintaining effective operations largely illusory in the university context. Accordingly, OSU's documented operational disruption provides an independent, constitutionally cognizable basis for concluding that the Pickering balance favors the University.

C. Even apart from the harms shown in the record, the Pickering balance tilts even more decisively toward OSU due to its unique nature.

1. The *Pickering* balance tilts even more decisively toward OSU because this dispute arises in the context of a public university.

Both Supreme Court doctrine and circuit precedent recognize that institutional interests carry heightened constitutional weight in the higher-education setting. First, the Supreme Court has emphasized the unique public role universities serve. In *Keyishian*, the Court recognized that universities occupy a central place in American constitutional culture as "a marketplace of ideas," entrusted with educating future citizens and cultivating academic standards. 385 U.S. at 603 *as cited in Urofsky* 216, 410 . The point is not that universities may suppress viewpoints — OSU did not do so here — but that their institutional mission requires them to define and maintain the academic environment through which they fulfill their public duties.

Second, circuit precedent confirms that the constitutional value of academic freedom flows to the institution, not the individual. After surveying the Supreme Court's

academic-freedom jurisprudence, the Fourth Circuit concluded that whatever First Amendment protection exists in this domain "belongs to the university as an institution," not to individual professors. *Urofsky*, 216 F.3d at 411–12. That principle is directly relevant: it means that OSU had both the authority and the responsibility to preserve the academic standards, institutional voice, and educational environment it deems necessary to pursue its mission.

Thus, when Petitioner publicly contradicted OSU's admissions policy at an OSU-sponsored event, invoking his authority as an OSU professor, he was not merely expressing disagreement. He was speaking in a manner that affected the University's ability to maintain its educational standards, its institutional message, and the community's trust — precisely the interests Urofsky recognizes as constitutionally assigned to the university itself.

Finally, basic institutional-deference principles reinforce the same conclusion. Courts have long recognized that public universities must be afforded latitude in managing their internal academic affairs, including decisions about the members of their faculty. That deference reflects the limits of judicial competence in academic governance, as well as the need for universities to maintain cohesive standards and environments suited to their educational mission. Where real reputational, financial, and operational disruption has been shown — and it has here — that deference becomes even more compelling.

Taken together, *Keyishian*, *Urofsky*, and the policy rationale underpinning *Pickering* confirm that the university setting weighs heavily on OSU's side of the balance. The Constitution entrusts OSU, not individual faculty members, with defining its academic environment and speaking with one institutional voice. And where, as here, faculty speech tied to the university's identity produces measurable harm to the institution's reputation, funding, and operations, the Pickering balance must reflect those heightened institutional interests.

Accordingly, the higher-education context reinforces what the specific record already demonstrates: OSU's interests are constitutionally weightier than any First Amendment interest Petitioner asserts.

2. Petitioner's First Amendment interest is discounted under *Connick* because his speech stemmed from personal grievance rather than objective civic commentary.

Even when a public employee speaks on a matter of public concern, the Court has held that the weight of the employee's interest depends on motive and context. In *Connick*, the Court discounted Myers's First Amendment claim because the speech was rooted in her own dissatisfaction, concluding that she did not "seek to inform the public" but was motivated by workplace grievance. 461 U.S. at 148. The Court made clear that speech that is essentially "an extension of [a] personal dispute" carries significantly reduced constitutional weight in the Pickering balance. Id.

The same dynamic appears in this record. Petitioner began criticizing OSU's admissions policy only after he himself was denied admission. R. 8–9. His remarks at Unity Fest referenced his own unsuccessful application, expressed frustration with the criteria used, and framed his critique through his personal exclusion. R. 8–9. That makes his speech far closer to the sort of internal dissatisfactions the Court found constitutionally weak in *Connick* than to detached civic commentary.

OSU has already accepted, for purposes of argument, that the topic of admissions equity touches public concern. But *Connick* makes clear that this is not the end of the analysis. When underlying motivation reveals the speech is reactive, self-interested, and tied to personal dissatisfaction, the employee's constitutional interest is correspondingly discounted. 461 U.S. at

148. Placed against OSU's demonstrated reputational, financial, and operational harms, that diminished weight further tilts the balance. Even conceding public-concern status does not entitle Petitioner to prevail where his speech was driven by personal grievance and caused concrete institutional disruption.

3. Favoring Petitioner despite proven institutional harms would undermine *Pickering*, destabilize academic governance, and impose untenable consequences on public universities.

If, even in the face of record-confirmed reputational injury, donor withdrawal, application decline, and administrative upheaval, the balance were to tip toward Petitioner, Pickering's framework would be stripped of meaning. The Court has consistently recognized that public employers retain authority to protect the "efficiency" and integrity of their operations. *Connick*, 461 U.S. at 150–51. If harms of this magnitude are insufficient, it is difficult to imagine any level of disruption that could justify institutional action, effectively erasing the employer's side of the balance.

Such a result would also conflict with academic-freedom doctrine. The Fourth Circuit has emphasized that whatever constitutional value attaches to academic governance "belongs to the university as an institution," not individual faculty. *Urofsky*, 216 F.3d at 411–12. Requiring OSU to absorb enrollment decline, donor loss, and governance disruption after speech publicly attributed to the institution would invert that principle and invite courts to assume the function of academic decision-makers. That would unsettle the separation of roles between universities and the judiciary that Urofsky identifies as doctrinally essential.

Policy consequences compound the doctrinal ones. If faculty who publicly contradict institutional policy under the university's banner may successfully recast ordinary employment

consequences as First Amendment violations, routine academic decisions—particularly end-of-term contract determinations—will become litigation triggers. Courts warned against precisely this in *Connick*, noting that broad constitutionalization of personnel disputes would result in "wide-ranging judicial supervision of government employment decisions." 461 U.S. at 146. Public universities would face a litigation incentive structure requiring them to either tolerate concrete institutional harm or defend administrative decisions before a court whenever disagreement over policy becomes public.

Finally, such an outcome would send a damaging signal about public universities' ability to preserve institutional clarity and protect student trust. If OSU cannot act even after documented confusion among applicants, donor withdrawal, and sustained administrative response, then universities would be compelled to yield their own mission, messaging, and funding whenever faculty speech delivered with institutional authority produces destabilizing effects. R. 10-11.

Pickering's test was not designed to impose that result. The Court has always required balancing, and where the employer's interests are substantial, concrete, and tied directly to institutional operation and credibility—as they are here—the First Amendment does not require public universities to remain passive. OSU's actions followed disruption, did not silence speech, and were limited to non-renewal at the close of a contract.

Accordingly, adopting Petitioner's position would distort Pickering, contradict Connick's core warnings, conflict with Urofsky's academic-freedom allocation, and create an unworkable legal regime for public universities. The balance cannot tip toward Petitioner without undermining the governing doctrine itself.

CONCLUSION

For the foregoing reasons, the Respondent respectfully requests that this Court affirm the decision of the Supreme Court of the State of Olympus.

Respectfully Submitted,

Counsel for Respondent